

Notice from the National Commission for Data Protection regarding the draft Grand-Ducal regulation on the organization of detention regimes for minors
Deliberation No. 69/AV38/2023 of July 21, 2023

In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018, organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or "CNPD") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."

Furthermore, in accordance with Article 8.3° of the aforementioned law of August 1, 2018, transposing into national law Article 46.1.e) of Directive (EU) 2016/680 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data by competent authorities for the purposes of prevention, detection of criminal offenses, investigations, and prosecutions in this matter or enforcement of criminal sanctions, and on the free movement of such data, and repealing Framework Decision 2008/977/JAI of the Council, the CNPD "advises the Chamber of Deputies, the Government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to the processing of personal data."

By letter dated April 1, 2022, the Minister of Justice invited the National Commission to express its opinion on the draft Grand-Ducal regulation on the organization of detention regimes for minors (hereinafter referred to as the "draft Grand-Ducal regulation").

According to the explanatory memorandum, the draft Grand-Ducal regulation aims "to establish the rules concerning the penitentiary regime of the new juvenile detention center" provided for under draft law No. 7991 introducing a criminal law for minors, which "results in the fact that minors who are accused and convicted can no longer be incarcerated in an adult detention center but now benefit from an autonomous penitentiary regime that takes into account their specific needs such as their age, maturity level, and physical and mental state."

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It also appears from the explanatory memorandum that "the penitentiary regime [for minors] broadly follows the draft Grand-Ducal regulation on the organization of the internal regimes of detention centers [..]."

The National Commission will limit its observations to issues related to the protection of personal data raised by Chapter VII (Articles 126 to 131) and Articles 103 and 121 of the draft Grand-Ducal regulation.

The National Commission notes that the draft Grand-Ducal regulation, with respect to the aforementioned provisions, is almost identical to the draft Grand-Ducal regulation on the organization of the internal regimes of detention centers mentioned above. Thus, it refers to the developments in its opinion regarding the draft Grand-Ducal regulation on the organization of the internal regimes of detention centers, adopted by its deliberation No. 32/AV27/2021 of October 1, 2021, and in particular to Section 4.A of this opinion dedicated to data concerning minors processed by the penitentiary administration. Indeed, as already noted in this opinion, it is necessary to draw the attention of the authors of the draft Grand-Ducal regulation to Recital (50) of the directive on the protection of natural

persons with regard to the processing of personal data in criminal matters as well as in matters of national security, which states that "the measures taken by the data controller should include the establishment and implementation of specific safeguards intended for the processing of personal data relating to vulnerable natural persons such as children."

Thus adopted in Belvaux on July 21, 2023.

The National Commission for Data Protection

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Tine A. Larsen

President

Thierry Lallemand

Commissioner

Alain Herrmann

Commissioner

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